



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

Department of State Contracting Activity	☐ Office of Acquisitions Management ☒ Foreign Service Institute ☐ Office of Foreign Missions ☐ U.S. Mission to the United Nations ☐ Overseas Post
Requiring Activity	Department of State, Foreign Service Institute, Executive Office, Office of Human Resources (FSI/EX/HR).

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Approval is requested to

This is to extend current contract 19FS1A23F0031 with Daniel Eke and Associates., up to an additional 6 months while we finish Source Selection on the Re-compete of the HR Professional Support Services full extension estimated at [REDACTED].

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

The requirement is to provide HR Professional Support Services at the Foreign Service Institute. The estimated value for the entire period of performance (Base, Options and Extension) is [REDACTED]. These supplies/services require supporting the operations and maintenance of the Human Resources office for the Foreign Service Institute. This will allow the HR to accomplish the mission of the Foreign Service Institute which is to develop the men and women our nation requires to fulfill our leadership role in world affairs and to defend U.S. interests.

The critical support procured through this contract action includes the following:

Human Resources Support: The HR Specialist (Classification) will serve as a senior position classification and organizational design specialist for the Foreign Service Institute, providing expert advice and guidance in matters related to position classification for Civil Service (CS) and Foreign Service (FS) employees, and organizational design issues. The HR Specialist (Employee Relations) will serve as a subject matter expert and advisor to the in matters related to Conduct, Suitability and Discipline issues for Civil Service and Foreign Service employees. The incumbent is responsible for the development, implementation and administration of policies and programs that affect Bureau employees, ensuring consistency in policies, practices and procedures while recognizing the inherent differences between the Civil and Foreign Services.

SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

This acquisition is conducted under the authority of 41 USC 3304, as implemented by FAR 6.3 and substantiated by the following: Check one of the FAR citations below and delete the other citations.

- ☐ FAR 6.302-1 – Only one responsible source and no other supplies or services will satisfy agency requirements.
- ☒ FAR 6.302-2 – Unusual and compelling urgency.
- ☐ FAR 6.302-3 – Industrial mobilization; engineering, developmental, or research capability; or expert service.
- ☐ FAR 6.302-4 – International Agreement.
- ☐ FAR 6.302-5 – Authorized or required by statute.
- ☐ FAR 6.302-6 – National Security.
- ☐ FAR 6.302-7 – Public Interest.

SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED

Maximum urgency is required to implement an interim award for the purpose of retaining critical support service while source selection is being conducted for the upcoming award. These services are essential to FSI/EX to support the operations of FSI's HR office. Maximum urgency is required to implement an interim award for the purpose of retaining critical support services for FSI HR Office. HR Office currently does not have any full-time employees specializing in classification services. Position classification is the assignment of a proper pay plan, occupational series, official position title, and grade level to a position by application of authorized Office of Personnel Management (OPM). Without contractual support of the classification specialist professional services, all classifications, recruitment and hiring activities will be halted. The classification contractors work with the FSI HR Staffing and Recruitment team and the Civil Service classification policy team to ensure compliance with Office of Personnel Management (OPM)'s Classification Standards, guidelines and internal policies; emphasizes sound position management; and certifies consistency in classification of positions across Department lines.

SECTION 6. DESCRIPTION OF EFFORTS TO ENSURE THAT OFFERS WERE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS OR WILL BE PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2 AND, IF NOT, WHICH EXCEPTION UNDER FAR 5.202 APPLIES

Market Research was completed, Capability Statements were reviewed, and acquisition strategy decided. Market Research report submitted to OSDDBU and 1910 approved for a HUB-Zone set-aside to be competed on GSA Multiple Award Schedules (MAS).

CO is working with the Program Office on evaluating competitive solicitation packages with anticipated award date by August 2025.
SECTION 7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE
The Contracting Officer has determined the anticipated price to the Government of the supplies/services covered by this J&A will be fair and reasonable based on price competition. Further, the Contracting Officer has determined the anticipated price to the Government for the supplies/services covered by this exception will be fair and reasonable based on established price list of GSA MAS, price based on prior competition, and current contract pricing, and the Government's independent cost estimate. The Contracting Officer will not award the planned action unless the Contracting Officer evaluates and determines that the resultant price is fair and reasonable.
SECTION 8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED (SEE PART 10) AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED
This is a request for an Interim Award to allow for the time needed for re-competition. Market Research was completed, Capability Statements were reviewed, and acquisition strategy decided. Market Research report submitted to OSD BU and 1910 approved for an HUB-Zone set-aside to be competed on GSA MAS. Solicitation was competed on GSA MAS and we are currently in Source Selection.
SECTION 9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION
Already in competitive process. Need continuity of services while complete source selection.
SECTION 10. LISTING OF THE SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION
N/A
SECTION 11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED
Follow on competition currently in process.
SECTION 12. CERTIFICATIONS
All reviews and approvals should be completed in the order listed unless otherwise authorized or required.
TECHNICAL AND REQUIREMENTS CERTIFICATION (FAR 6.303-2(b))